

STATE OF NEW YORK

8922--A

2025-2026 Regular Sessions

IN ASSEMBLY

July 16, 2025

Introduced by M. of A. E. BROWN, BLUMENCRANZ -- read once and referred to the Committee on Real Property Taxation -- recommitted to the Committee on Real Property Taxation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property tax law, in relation to enacting the "Nassau county auxiliary police tax exemption act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Nassau county auxiliary police tax exemption act".

3 § 2. Legislative findings and intent. The legislature finds that
4 auxiliary police officers in Nassau county, New York, provide valuable
5 voluntary services to local law enforcement agencies, enhancing public
6 safety and community welfare. Recognizing their dedication, the legisla-
7 ture intends to provide financial relief to active auxiliary police
8 officers by granting an exemption of up to 10% on county real property
9 taxes for their primary residence, thereby supporting their continued
10 service to the community.

11 § 3. The real property tax law is amended by adding a new section
12 467-o to read as follows:

13 § 467-o. Exemption for active auxiliary police officers; certain muni-
14 cipalities. 1. Real property owned and occupied as the primary residence
15 by an active auxiliary police officer serving in a local law enforcement
16 agency within a county with a population between one million three
17 hundred eighty thousand and one million four hundred twenty thousand
18 shall be eligible for an exemption from county real property taxes of up
19 to ten percent, provided such officer meets eligibility requirements
20 established by such county.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 2. (a) An active auxiliary police officer seeking such exemption shall
2 file an application with the county assessor, on a form prescribed by
3 the county, by the taxable status date established by the county.

4 (b) Such application shall include proof of active service as an
5 auxiliary police officer, proof of ownership, and proof of primary resi-
6 dency, as required by the county.

7 3. Such exemption shall not exceed ten percent of the assessed value
8 of the real property for county real property tax purposes, as deter-
9 mined by the county assessor, and shall apply only to taxes levied by
10 the county.

11 4. Such exemption shall cease if:

12 (a) The property is no longer the primary residence of the auxiliary
13 police officer;

14 (b) The individual ceases to serve as an active auxiliary police offi-
15 cer; or

16 (c) The property is transferred to a new owner.

17 5. The county may establish additional eligibility criteria, applica-
18 tion procedures, and administrative guidelines to implement this
19 exemption, provided such criteria are consistent with the provisions of
20 this section.

21 § 4. Severability. If any clause, sentence, paragraph, or section of
22 this act shall be adjudged by any court of competent jurisdiction to be
23 invalid, such judgment shall not affect, impair, or invalidate the
24 remainder thereof, but shall be confined in its operation to the clause,
25 sentence, paragraph, or section adjudged to be invalid.

26 § 5. This act shall take effect on the first of January next succeed-
27 ing the date on which it shall have become a law and shall apply to
28 taxable status dates occurring on or after such date.